



GENOCIDE IS A VIOLATION OF THE LAWS OF HUMANITY

THE GENOCIDE CONVENTION (1948)

IN CONTEXT

FOCUS

International law

BEFORE

1899 The first of the Hague Conventions on the proper conduct of warfare is issued.

1915 The genocide of up to 1.5 million Armenians at the hands of the Turks begins.

1942 The Nazis agree on the details of the Final Solution at the Wannsee Conference.

AFTER

1993 The UN sets up an international criminal tribunal (ICTY) to investigate crimes in the former Yugoslavia.

1995 An investigation by a UN international criminal tribunal (ICTR) begins into the Rwandan genocide of 1994.

2018 The UN warns that genocide remains “a threat and a reality,” citing atrocities against the Rohingya, Yazidi, Syrians, and others.

Mass killing has always been a tragic part of history. But genocide reached a horrifying scale in World War II, as Germany murdered with industrial efficiency some 6 million Jews, as well as many Romany people and others in the Holocaust. After the war, there was a strong drive to reassert the rule of law in the face of these atrocities. To bring Nazi leaders to justice, the 1945 Charter of the International Military Tribunal, setting out a framework for the Nuremberg trials, identified the charge of crimes against humanity.

The Nazis' crime was on such a scale that it needed an entirely new structure to define it. Moreover, it

was a crime committed by an entire state, not an individual, so it was crucial to find ways to identify who should be held responsible.

International law

In 1946, the United Nations (UN) passed a resolution recognizing genocide as a crime. The UN accepted the Convention on the Prevention and Punishment of the Crime of Genocide (known as the Genocide Convention) 2 years later, and it came into force in 1951.

Much of the groundwork had been done by Dr. Raphael Lemkin, who had escaped the Holocaust to reach the US. In 1944, he published his account of Nazi occupation,

Before the 20th century, **mass killing of targeted groups** of people is **not recognized as a crime** in international law.



After the Holocaust, the Nuremberg trials expose a **need to define and name the crime**, so guilty parties can be prosecuted.



In 1948, the UN adopts a Convention to **define, prevent, and punish genocide**.